

Court No. - 3

Case :- WRIT - C No. - 22798 of 2022

Petitioner :- Vijay Shukla

Respondent :- Uttar Pradesh Power Ltd. And 3 Others

Counsel for Petitioner :- Ravindra Kumar,Amit

Counsel for Respondent :- CSC,Madan Mohan Chaurasisa

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

Heard Sri Ravindra Kumar, learned counsel for the petitioner and Sri Madan Mohan Chaurasia, learned counsel for the respondent nos.3 and 4..

This writ petition has been filed praying for the following reliefs:

"(i) Issue a writ order or direction in the nature of mandamus to direct the respondents authority to consider the case of the petitioner in accordance with scheme one time settlement dated 31.05.2022 extended till 15.07.2022.

ii) Issue a writ order or direction in the nature of mandamus to direct the respondents authority, the out standing amount no surcharge or penalty be impugned upon the petitioner after adjusting the amount already deposited.

Learned counsel for the respondent Nos 3 and 4 / Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is ***disposed off*** giving liberty to the petitioner to submit his/ her objection under ***Para 6.5 of U.P. Electricity Supply Code, 2005*** before the respondent No.3 within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.3 in accordance with law, expeditiously, preferably within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 10.8.2022

T.S.